

State of North Dakota

In District Court

County Of _____

_____ Judicial District

Plaintiff,
vs

Defendant.

)
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)
)
)
)
)

Case No. _____

Summons

The State of North Dakota to the above-named Defendant:

1. **You are hereby summoned** and required to appear and defend against the Complaint in this action by serving on the undersigned an Answer or other proper response within twenty-one (21) days after the service of this Summons and Complaint upon you, exclusive of the day of service. A copy of the Complaint is served on you with this Summons.
2. If you fail to do so, judgment by default will be taken against you for the relief demanded in the Complaint.

Notice of Temporary Restraining Provisions:

3. Under Rule 8.4 of the North Dakota Rules of Court, upon service of this Summons, you, and your spouse, are bound by the following restraints:
 - a. Neither spouse shall dispose of, sell, encumber, or otherwise dissipate any of the parties' assets, except:
 - i. For necessities of life or for the necessary generation of income or preservation of assets; or
 - ii. For retaining counsel to carry on or to contest the proceeding.

If a spouse disposes of, sells, encumbers, or otherwise dissipates assets during the interim period, that spouse must provide to the other spouse an accounting within thirty (30) days.

- b. Neither spouse shall harass the other spouse.
- c. All currently available insurance coverage must be maintained and continued without change in coverage or beneficiary designation.
- d. Except for temporary periods, neither spouse may remove any of their minor children from North Dakota without the written consent of the other spouse or order of the court.

4. **If either spouse violates any of these provisions, that spouse may be in contempt of court.**

Dated _____.

(Plaintiff's Signature)

(Plaintiff's Printed Name)

(Address)

(City, State, Zip Code)

(Telephone Number)

(Email Address)

Dated _____

Clerk of District Court